



FEDERAL PUBLIC SERVICE COMMISSION
COMPETITIVE EXAMINATION-2018
FOR RECRUITMENT TO POSTS IN BS-17
UNDER THE FEDERAL GOVERNMENT

Roll Number

MUSLIM LAW AND JURISPRUDENCE

TIME ALLOWED: THREE HOURS
PART-I(MCQS): MAXIMUM 30 MINUTES

PART-I (MCQS)
PART-II

MAXIMUM MARKS = 20
MAXIMUM MARKS = 80

- NOTE: (i) Part-II is to be attempted on the separate Answer Book.
(ii) Attempt **ONLY FOUR** questions from **PART-II**. **ALL** questions carry **EQUAL** marks.
(iii) All the parts (if any) of each Question must be attempted at one place instead of at different places.
(iv) Candidate must write Q. No. in the Answer Book in accordance with Q. No. in the Q.Paper.
(v) No Page/Space be left blank between the answers. All the blank pages of Answer Book must be crossed.
(vi) Extra attempt of any question or any part of the attempted question will not be considered.

PART-II

- Q. No. 2. Discuss the significance and relevance of customary practices of pre-Islamic Arabia society in formulation of Islamic Law. How aspect could guide us to seek inspiration from the customary practices and norms of contemporary world? (20)
- Q. No. 3. Significance of the Holy Quran in legislative domain of Islamic Law cannot be over-emphasized. Explain the legislative verses of the Quran with specific reference to Muslim Family law. (20)
- Q. No. 4. Renowned Pakistani Scholar Imran Ahsan Nyazee has elaborated three theories of interpretation of Islamic Law in his book titled "Theories of Islamic Law". Evaluate them analytically. (20)
- Q. No. 5. Critically evaluate the important provisions of the Muslim Family Laws Ordinance 1961 with reference to the Federal Shariat Court's decision in "Allah Rakha v Federation of Pakistan" (PLD 2000 FSC 01). (20)
- Q. No. 6. Discuss theory and practice of Hudood and Tazir with reference to Pakistani legal system. (20)
- Q. No. 7. Discuss the institution of *Shura* in Islamic polity and how this institution could transform and impact on the modern political institution of parliament? (20)
- Q. No. 8. Write short notes on the following: (5 each) (20)
- (a) Talaq-i-Ahsan and Talaq-i-Hasan
 - (b) Proper Dower (Mehr-i-Misl)
 - (c) Dar al-Harb
 - (d) Judicial Ijethad
